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The State Secretary for Finance
P.O. Box 20201
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Date

March 14, 2024

Our reference

2023-301519

Your letter dated

December 6, 2023

Contact person

Your reference

2023-274866

Subject

Decision on customs camera surveillance

Dear Ms. de Vries,

In your letter dated December 6, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR) regarding the draft decision to amend the General Customs Decision in connection with the introduction of the Customs Camera Surveillance Act (hereinafter: the draft).

An assessment of the personal data aspects of the draft has led the AP to make several comments.

Scope of the draft

The General Customs Decision (Adb) is being amended in connection with the changes in the General Customs Act (Adw) as a result of the Customs Camera Surveillance Act¹, which includes a legal basis in the Adw for the processing of personal data when cameras are used by the customs inspector. Additionally, a delegation basis² has been included, which stipulates that further rules will be established by general administrative regulation for the proper implementation and application of Articles 1:23a to 1:23g of the Adw. It has been determined that rules will be established regarding the content of the camera plan, including a justification for the deployment of cameras that may process personal data. This amendment to the Adb implements that delegation provision.

¹ Stb. 2023, 433. Entered into force on January 1, 2024. The AP advised in 2023 on the draft bill (case number z2022-5715).

² Article 1:23h Adw.

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If third-party cameras³ are used, Article 1:23a, paragraph 6, Adw stipulates that an agreement must be concluded between the inspector and that person or institution. Article 1:4a Adb specifies what must be included in this agreement.

The camera plan, to be prepared annually before January 1, provides insight into the fixed and mobile cameras used by customs, which may process personal data. The camera plan includes both own cameras and those of third parties. The camera plan describes and justifies the planned use of

cameras by customs.⁴

Legislative assessment

Visibility of camera surveillance (drones)

Article 1:23g, paragraph 2, Adw states that the presence of fixed cameras that may process personal data must be made clearly visible. In its advice on the draft bill for the Customs Camera Surveillance Act, the AP noted that the draft bill did not address the visibility of mobile camera surveillance.^{5 6} The Customs Camera Surveillance Act has not been amended in this regard. The explanatory memorandum to the Customs Camera Surveillance Act states that in response to this critical comment from the AP, "the visibility of the deployment of mobile cameras [...] has been clarified in the explanation."⁷ This clarification reads as follows:

"For mobile cameras, the locations and situations in which they may be deployed will also be included in the camera plan. Additionally, the deployment of drones will be reported via the customs website."⁸

The content of the camera plan is (mandatory)⁹ part of this general administrative regulation.¹⁰ Article 1:4c provides little to no further clarification on the content of the camera plan. The explanatory memorandum provides a bit more detail:

"[T]he camera plan [contains] a statement of the number of mobile cameras, distinguished by type, that may be deployed and the types of areas where these cameras may be deployed. For these cameras, it is also about a general location determination."¹¹

³ For example, the Coast Guard.

⁴ Article 1:4c Adb.

⁵ Advice dated January 10, 2023 (case number z2022-5715).

⁶ Mobile cameras are usually drones (Parliamentary Documents II, 2022-2023, 36 345, no. 3, p. 5).

The terms are used interchangeably here (and in the legislative dossier).

⁷ Parliamentary Documents II, 2022-2023, 36 345, no. 3, p. 16.

⁸ Parliamentary Documents II, 2022-2023, 36 345, no. 3, p. 11.

⁹ Article 1:23h Adw.

¹⁰ Article 1:4c of the draft.

¹¹ Explanatory memorandum, p. 3.

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Since the camera surveillance has a legal basis in the Adw, the information obligation as referred to in Article 14, paragraphs one to four, GDPR does not apply. However, the law must provide for appropriate measures to protect the legitimate interests of the data subject.¹²

In this case, "appropriate measures" can be understood as specifying, in line with the explanatory memorandum accompanying the Customs Camera Surveillance Act,¹³ what is communicated via the website and camera plan regarding the (planned) deployment of mobile cameras in Article 1:4c.¹⁴ This is also the mandate in the delegation provision of Article 1:23h Adw.

The explanatory memorandum accompanying the Customs Camera Surveillance Act¹⁵ and the explanatory note on the draft¹⁶ describe in various terms what the camera plan should entail. Article 1:4c provides little to no further clarification on the content of the camera plan and therefore does not clarify which interpretation should prevail.

The AP concludes that Article 1:4c must clearly indicate how and to what extent the locations and situations in which mobile cameras may be deployed are to be included in the camera plan, and also prescribe that the deployment of drones will be reported via the customs website.

Are the third parties involved in the camera surveillance processors?¹⁷

If third-party cameras are used, Article 1:23a, paragraph six, Adw requires that an agreement be concluded between the inspector and that person or institution. Article 1:4a Adb states what must be included in this agreement.

It is conceivable that these third parties are processors within the meaning of Article 4, under 8, GDPR. If so, GDPR requirements also apply to the agreement.¹⁸ The explanatory note does not address this potential overlap.

The AP concludes that the explanatory note must address whether the third parties involved in the camera surveillance should possibly be considered processors, and if so, what consequences this has for Article 1:4a Adb.

¹² Article 14, paragraph five, under c, GDPR.

¹³ See footnote 8.

¹⁴ See also Basic Principles for the Use of Drones with Cameras | Data Protection Authority.

¹⁵ Parliamentary documents II, 2022-2023, 36 345, no. 3, p. 11.

¹⁶ Explanatory note, p. 3.

¹⁷ persons or institutions that are not inspectors or recipients (Article 1:23a, paragraph six, Adw).

¹⁸ Article 28, paragraph three, GDPR.

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Note on facial recognition

The explanatory memorandum accompanying the Customs Camera Surveillance Act notes that, as long as there is no software that provides sufficient safeguards, cameras with facial recognition capabilities will not be used.¹⁹ If customs wishes to use facial recognition in the future, there must be a (formal) legal basis for this²⁰, which, as far as is known, does not currently exist.

Workload AP

It is likely that the draft will require the AP to make limited additional efforts. This effort has not yet been factored into the AP's funding. This will need to be addressed in consultation with the Minister for Legal Protection - who is responsible for the budget from which the AP is financed - prior to the entry into force. For this reason, a copy of this legislative assessment is sent to the Minister for Legal Protection.

Disclosure

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,
Data Protection Authority,

Aleid Wolfsen
Chairman

¹⁹ Parliamentary documents II, 2022-2023, 36 345, no. 3, p. 5-6.

²⁰ Facial recognition is a processing of biometric data aimed at the unique identification of a person. These are special personal data whose processing is prohibited (Article 9, paragraph one, GDPR) unless there is an applicable exception in Article 9, paragraph two, GDPR. In this case, that could be Article 9, paragraph two, under g, GDPR. One of the requirements for its application is a legal basis.